

introducing the opposition ground of lack of novelty would be tantamount to including the latter ground as an invariant concomitant of the opposition ground of lack of inventive step, which would be contrary to decision G 7/95 (OJ 1996, 626 – see in this chapter IV.C.3.4.2).

If a patent has been opposed on the grounds of lack of novelty and lack of inventive step and if only the ground of novelty has been substantiated, a specific substantiation of the ground of lack of inventive step is not necessary. Under such circumstances a specific substantiation of the ground of lack of inventive step is not even generally possible since – given that novelty, i.e. the presence of a difference between the claimed subject-matter and a prior art, is a prerequisite for determining whether an invention involves an inventive step in view of that prior art – this would contradict the reasons in support of lack of novelty. Therefore, the objection of lack of inventive step does not constitute a fresh ground for opposition and can therefore be examined in the appeal proceedings without the agreement of the patentee (T 597/07; see also T 131/01, OJ 2003, 115).

In T 635/06 the notice of opposition specified that the patent in suit was opposed for lack of novelty and lack of inventive step as the respective boxes of the standard EPO form had been crossed and as the notice explicitly indicated both grounds. In the circumstances of the case it was not possible for the opponent to substantiate the ground of lack of inventive step by any analysis going beyond its arguments against novelty. The opponent was thus limited to the position that a comparison of the disclosed composition and the claimed subject-matter revealed no distinguishing feature, the presence of which would, however, be necessary for a detailed objection to inventive step. Hence, the ground of lack of inventive step was considered by the board to be sufficiently addressed and, thus, properly raised in the notice of opposition.

#### 3.4.5 Examination of fresh facts and evidence related to a fresh ground

In T 1002/92 (OJ 1995, 605) the board stated that, when considering the admissibility of a further ground for opposition not covered by the notice of opposition after expiry of the opposition period, both before an opposition division and before a board of appeal, the Enlarged Board (G 10/91, OJ 1993, 420) was necessarily implicitly considering the admissibility of such a fresh ground in combination with at least an indication of the **fresh facts and evidence** intended to support it. The mere stating of a fresh ground without any indication of the fresh facts, evidence and argument supporting it would obviously be inadmissible, either within or after expiry of the opposition period. The board then went on to conclude that it would be illogical to have one criterion for the admissibility of late-filed new facts, evidence and arguments in combination with a fresh ground, and a different criterion for judging the admissibility of late-filed new facts, evidence and arguments in support of a ground for opposition already covered by the opposition statement. Hence, in the board's view, it followed that the principles set out by the Enlarged Board in the opinion G 10/91 as underlying the admissibility of fresh grounds for opposition, were also generally applicable to the admissibility of late-filed new facts, evidence and arguments intended to support grounds for opposition already covered by the opposition statement.

For further details on examination of fresh facts and evidence, see in this chapter IV.C.4. "Late submission of documents, lines of attack and arguments" below.

### 3.4.6 Opportunity to comment on new grounds for opposition

Art. 113(1) EPC, in which the requirement that the parties be heard is enshrined, provides that decisions of the EPO may only be based on grounds or evidence on which the parties have had an opportunity to present their comments. The word "grounds" is interpreted as referring to the **essential reasoning, both legal and factual** (see e.g. T 951/92, OJ 1996, 53; T 433/93, OJ 1997, 509). See also in this chapter IV.C.6.5. Opportunity to present comments" below.

Thus if an opposition division wishes to introduce a new ground of opposition into the proceedings in addition to the ground(s) substantiated in the notice of opposition, either of its own motion or upon request by an opponent, the patent proprietor must be informed (normally in writing) not only of the new ground of opposition (i.e. the new legal basis for the opposition), but also of the essential legal and factual reasons which could lead to a finding of invalidity and revocation. Thereafter the patent proprietor must have a proper opportunity to present comments in reply to the new ground and its substantiation (T 433/93, OJ 1997, 509, see also T 1283/11).

In T 656/96, the opponent had based his opposition solely on the invention's purported lack of inventive step. However, lack of novelty was advanced as a ground for opposition for the first time in the oral proceedings and in the absence of the patent proprietor, who had previously informed the division that he would not be attending oral proceedings. The opposition division revoked the contested patent, even though it had not originally raised a novelty objection in its communication under Art. 101(2) EPC 1973 (Art. 101(1) EPC). In such circumstances, the board referred to the case law of the Enlarged Board of Appeal distinguishing between the opposition ground of lack of novelty and that of lack of inventive step (G 7/95, OJ 1996, 626) and recognising the opposition division's competence to consider, exceptionally under Art. 114(1) EPC, fresh grounds for opposition which, prima facie, appear, either in whole or in part, to prejudice maintenance of the European patent (G 10/91, OJ 1993, 420). In the case in hand, the board held that, particularly in the light of the opinion on novelty expressed in the communication from the opposition division, no prima facie case against maintenance of the patent could be gathered from the file, so that the appellant had been entitled to consider that the question of novelty would play no part before the opposition division. The appellant must therefore have been **taken by surprise** by the decision taken in his absence by the opposition division at the oral proceedings to revoke the patent on the grounds of lack of novelty, grounds on which he had not been asked, nor had any reason, to express an opinion.

In T 270/94, the board found that the opposition division had infringed Art. 113(1) EPC by preventing opponent 1, who had based its opposition solely on lack of novelty, from commenting on an opposition ground of lack of inventive step duly submitted by opponent 2 and communicated to all the parties in accordance with R. 57(2) EPC 1973 (R. 79(2) EPC). Furthermore, the board observed that Art. 114(2) EPC, relied on by the opposition division, was not applicable to the case, because it indicated only that the EPO could disregard late-filed facts or evidence, whereas the case in hand involved arguments put forward by one of the parties to the proceedings in relation to a ground for opposition submitted in due time by another party.

In T 1164/00 the board held that the opposition division was in principle entitled to introduce a new ground for opposition even at the late stage of oral proceedings, since, in its view, it was apparent that the patent in suit did not comply with the requirements of Art. 83 EPC. However, in this case, the annex to the summons to oral proceedings did not contain any indication of the opposition division's intention to introduce a new ground for opposition, which meant that the appellant was made aware of the factual and legal reasons supporting the introduction of this new ground for the first time during the oral proceedings. The board therefore concluded that the appellant had not been notified in writing as early as possible and, not having been informed beforehand of the factual and legal reasons, had been taken by surprise and had not had a fair opportunity during the oral proceedings to prepare a proper defence against this new objection. In those circumstances, the opposition division **ought to have adjourned the oral proceedings** in order to give the appellant sufficient time, in accordance with Art. 113 EPC, to prepare a suitable defence against the new objections (see also T 433/93, OJ 1997, 509; T 817/93; T 1083/01; T 64/03 and T 27/14).

In T 2362/08, the board had to determine whether the patent proprietors' right to be heard according to Art. 113(1) EPC had been safeguarded with regard to the decision of the opposition division on insufficiency of disclosure. While the ground of insufficiency appeared in the notice of opposition, the objections of the opponents were merely based on two lines of argument. No further submission on insufficiency was filed by the opponents in writing and, before the oral proceedings took place, no further issue was raised by the opposition division. Specifically, in its communication accompanying the invitation to oral proceedings, the opposition division did not agree with the objections of the opponents, placed the burden of proof on them to establish that the skilled person would be unable to carry out the invention and noted that the opponents had not submitted any experimental evidence. In its decision on insufficiency, however, the opposition division developed a completely different line of argument on a substantive issue of insufficiency which was raised for the first time at the oral proceedings. Furthermore, the patent proprietors had to face an **unexpected reversal of opinion** from the opposition division, which discharged the opponents of the burden of proof, thereby shifting it to the patent proprietors. The board could not consider the simple formal hearing of the patent proprietors on the issue at the oral proceedings to have been a proper opportunity for them to present their comments. By presenting the new legal and factual framework only at the oral proceedings and by coming to a final decision on the issue without first having given the patent proprietors a proper opportunity to respond, the opposition division did not respect their right to be heard.

### 3.5. Grounds raised against claims amended after grant

Amendments of the claims or other parts of a patent in the course of opposition (or opposition appeal) proceedings are to be examined as to their compatibility with the requirements of the EPC. The principle that the opposition division must examine only such grounds for opposition as have been properly submitted and substantiated in accordance with Art. 99(1) EPC 1973 in conjunction with R. 55(c) EPC 1973 (R. 76(1), (2)(c) EPC) does not apply to such amendments (see G 9/91 and G 10/91, OJ 1993, 408 and 420, point 19 of the Reasons respectively). For details, see

chapter IV.C.5.2 "Scope of examination of amendments" which also explains the limited extent of the power to examine amended claims for compliance with Art. 84 EPC.

#### **4. Late submission of documents, lines of attack and arguments**

##### **4.1. Discretionary decision**

Under Art. 114(1) EPC, the EPO is obliged to examine the facts of its own motion, and in doing so, it is not restricted to the facts, evidence and arguments provided by the parties and the relief sought. In T 223/95, however, the board emphasised the **character of the post-grant opposition proceedings** under the EPC, which were in principle to be considered as contentious proceedings between parties normally representing opposite interests, who should be given equally fair treatment. It was the **responsibility of the opponent** himself to present to the opposition division the facts, evidence and arguments in support of the grounds on which the opposition was based. See also T 998/04 (referring to G 9/91, OJ 1993, 408 and T 671/03) and T 223/05.

According to Art. 114(2) EPC, the EPO may disregard facts or evidence which are not submitted in due time by the parties concerned. Interpretation of Art. 114 EPC therefore requires an analysis of the inter-relationship between its paragraphs 1 and 2. In T 122/84 (OJ 1987, 177) the board summarised the historical development of the principle of ex officio examination with regard to late submission on the basis of the "travaux préparatoires" to the EPC 1973. A solution it found compatible with this principle was to leave it to the **discretion** of the department concerned whether or not to examine facts or evidence not submitted in due time, rather than ruling out such examination altogether.

Following the principles set out in G 10/91 (OJ 1993, 420), the board in T 1002/92 decided that in opposition proceedings late-filed facts, evidence and related arguments going beyond the "indication of the facts, evidence and arguments" presented in the notice of opposition pursuant to R. 55(c) EPC 1973 (R. 76(2)(c) EPC) in support of the grounds of opposition on which the opposition is based should only exceptionally be admitted into the proceedings by the opposition division if, prima facie, there are clear reasons to suspect that such late-filed material would prejudice the maintenance of the European patent in suit. See also T 334/06, referring to T 273/84 (OJ 1986, 346) and T 1002/92. For details of the criteria for the exercise of discretion, see chapter IV.C.4.5.

For appeal proceedings the boards have highlighted that a rigid rule excluding all new evidence might lead to injustice and unfairness in some cases and would not be compatible with the principles of procedural law generally recognised in the contracting states (J 5/11, J 6/14, T 598/13). That applies a fortiori to opposition proceedings.

For proceedings at first instance, R. 116(1) EPC provides that, when the summons to oral proceedings is issued, a final date for making written submissions in preparation for the oral proceedings must be fixed. New facts and evidence submitted after this date need not be considered, unless admitted on the grounds that the subject of the proceedings has changed. This provision does not act as an absolute bar to admitting late submissions;

instead, its very wording shows that it leaves **room for discretion** (T.798/05; see also T.2102/08, T.1253/09).

In T.1485/08, the opposition division had decided not to admit the late filing (on the day of the oral proceedings) of an English translation of a Korean patent which had been filed with the grounds of opposition. The board noted that the document (Korean patent) had been filed with the notice of opposition against novelty of the patent in suit. Although not in one of the official languages of the EPO, from the use of various English terms in the description of the document it was already discernible that its subject-matter was related to the claimed subject-matter. The board was of the opinion that the opposition division in not admitting the English translation for the sole reason that it was late-filed, without having examined its relevance or considered any other criteria, did not properly exercise its discretion.

## 4.2. Sufficient reasoning

According to the consistent case law of the boards of appeal, although Art. 114(2) EPC gives an opposition division discretion not to consider facts and evidence not submitted in due time, the division is obliged to give reasons for its decision; it is not enough merely to cite their late submission (T.705/90, T.214/01, T.1855/13). Even if submissions are late-filed, their admission remains a procedural aspect over which the opposition division can exercise discretion. As a consequence, the decision needs to show the reasoning why the discretion was exercised one way or the other (T.1855/13).

In T.2097/10, the board found that the brief statement of reasons given by the opposition division – to the effect that documents D18 and D19 were relevant and not especially voluminous – was sufficient. Moreover, it was not apparent from the minutes that the patentee's representative had been denied an opportunity to comment on those documents, or that he had asked for more time to prepare such comments but his request had been refused.

In T.544/12 the board pointed out that a **bare assertion** of a lack of prima facie relevance was not by itself sufficient reasoning.

## 4.3. Concept of "in due time"

### 4.3.1 Duty to facilitate due and swift conduct of proceedings

The discretionary power pursuant to Art. 114(2) EPC applies to facts and evidence filed late (see e.g. T.502/98, T.986/08, T.66/14; see also T.1022/09, according to which documents that were filed with the notice of opposition, and whose filing was substantiated, were automatically admitted to the opposition proceedings). What is meant by "in due time" for the purposes of Art. 114(2) EPC requires interpretation.

The parties in inter partes cases are subject to a particular **duty to facilitate due and swift conduct of the proceedings**, in particular by submitting all relevant facts, evidence, arguments and requests as early and completely as possible (see e.g. T.1955/13; see also